

25NWCV01889 25NWCV01889

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 25NWCV01889 Hearing Date: September 4, 2026 Dept: P

FEDERAL INSURANCE

COMPANY, ET AL. v. EQUIPMENT MANUFACTURING COMPANY, ET AL.

CASE NO.: 25NWCV01889

HEARING: 09/04/2026 @ 9:30 AM

#14

TENTATIVE ORDER

Defendant Equipment Manufacturing Corporation's motion to consolidate is DENIED without prejudice.

Moving party to give notice.

Defendant Equipment Manufacturing Corporation (Defendant) moves to consolidate this action with Case No. 26NWCV00452.

Background

On May 27, 2025, Plaintiffs Federal Insurance Company, Imperium Insurance Company, and Great American Insurance Company, as subrogees of their insured Encore Oilfield Services, LLC (Insured) (collectively, Plaintiffs) filed this action against Defendants Equipment Manufacturing Company, Equipment Manufacturing Corporation, E & K Sales, and Does 1 through 30. On March 17, 2026, after the Court granted leave to amend, Plaintiffs filed the operative first amended complaint (FAC). The FAC alleges Plaintiffs were

insurance carriers for Insured under a Business Insurance Policy (Policy) which covered Insured's business located at 5281 Old Granbury Rd., Granbury, TX 76049 (Subject Property) for property damages arising out of a sudden fire. (FAC, ¶¶ 1, 3.) On June 8, 2023, a fire erupted at the Subject Property which Plaintiffs believe originated at a water eater wastewater evaporator as a result of a design or manufacturing defect. (FAC, ¶ 12.) The FAC alleges Defendants constructed, designed, manufactured, assembled, distributed, installed, tested, inspected and/or sold the subject water eater wastewater evaporator. (Complaint, ¶ 19.) The FAC asserts four causes of action: (1) negligence, (2) strict liability – products liability, (3) negligent failure to recall or retrofit product, and (4) breach of implied warranty of merchantability.

On July 7, 2026, this action was deemed related with Priority
One Insurance v. Equipment Manufacturing Company, et al., Lo Angeles
Superior Court, Case No. 26NWCV00452.

Legal Standard

Code of Civil Procedure section 1048 provides: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc., § 1048, subd. (a).)

Under California Rules of Court, rule 3.350(a)(1), a notice of motion to consolidate must: (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and (C) Be filed in each case sought to be consolidated. Pursuant to California Rules of Court, rule 3.350(a)(2), the motion to consolidate: (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case; (B) Must be served on all attorneys of record and all non-represented parties in all of the cases sought to be consolidated; and (C) Must have a proof of service filed as part of the motion. "[T]he lowest numbered case in the consolidated case is the lead case." (Cal. Rules of Court, rule 3.350(b).)

Discussion

Defendant moves to consolidate the instant action with Case No. 26NWCV00452. This motion is unopposed.

Defendant's motion is procedurally deficient. Defendant did not file a copy of this motion or a proposed order in Case No. 26NWCV00452. (See Cal. Rules of Court, rule 3.350(a)(1)(C), (a)(2)(b), (c).)

Accordingly, Defendant's motion to consolidate is DENIED without prejudice.